

Nasiruzzaman v. U.P. Power Corporation

High Court of Judicature at Allahabad · Division Bench · 25 May 2022 · Writ-C No. 8067 of 2022 · **Liberty to object under Para 6.8; coercive action stayed**

HEADNOTE

Writ against an ex-parte inspection, provisional assessment and demand disposed of without touching the merits. The consumer may file a Para 6.8 objection before the Executive Engineer within four weeks; if filed in time it shall be decided after hearing within the next four weeks. Coercive action on the demand is stayed for eight weeks or until that decision, whichever is earlier.

FACTUAL SUMMARY

Nasiruzzaman petitioned against the U.P. Power Corporation and two others to quash an ex-parte inspection report of 13 October 2020, a provisional assessment of 10 December 2020, and a demand notice of 8 February 2021, and to quash any related FIR. On instructions, respondents' counsel said an objection to the demand could be filed and would be decided according to law within a fixed time. The order does not record the inspection findings or the amount demanded.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Objection to provisional assessment and demand

HOLDING

Without any opinion on merits, the writ was disposed of with liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer within four weeks, along with a certified copy of the order. If submitted in time, the Executive Engineer shall decide it in accordance with law within the next four weeks after a reasonable opportunity of hearing. No coercive action shall be taken on the impugned demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 3-5

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The Court refused to examine the inspection, provisional assessment, demand or FIR and relegated the consumer to a time-bound Para 6.8 objection before the Executive Engineer, with hearing and a limited stay of coercive recovery. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE INSPECTION REPORT OF 13.10.2020, THE PROVISIONAL ASSESSMENT OF 10.12.2020, THE DEMAND NOTICE OF 8.2.2021, OR ANY FIR IS LIABLE TO BE QUASHED

Expressly left open; the writ was disposed only by liberty to object under Para 6.8. ¶ 4